

25STCV20313 25STCV20313

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-30

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Case Number: 25STCV20313 Hearing Date: July 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV20313

GABRIEL

M DE LA ROSA vs FCA US LLC, et al.

July

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT'S MOTION FOR SANCTIONS.

RULING:

The Court grants the unopposed
Motion.

On or before August 28,
2026, Plaintiff shall comply with California Code of Civil Procedure section
871.26, by providing disclosures and producing all required documents.

On or before August 21,
2026, Plaintiff's counsel, STRATEGIC LEGAL PRACTICES A PROFESSIONAL CORPORATION,
shall pay statutory sanctions in the sum of \$1,500.00 to Defendant, FCA US, LLC,
the Court finding an absence of good cause. (See, e.g., Code Civ. Proc., §
871.26, subd. (j).)

Defendant to give notice.

I.
BACKGROUND

On July 1, 2025, GABRIEL
M DE LA ROSA (Plaintiff) filed a Lemon Law Complaint against FCA US LLC and
MOSS BROS. CHRYSLER DODGE JEEP RAM SAN BERNARDINO (Defendants), alleging Causes
of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§
1790-1795.8), along with claims for Negligent Repair and Fraudulent Inducement
- Concealment.

Plaintiff alleges
purchasing, with warranty provisions, a 2023 Dodge Challenger that Defendant FCA
US LLC manufactured, which had defects, including engine, transmission, and
electrical. Plaintiff further alleges that Defendant failed to repair the
vehicle within a reasonable number of attempts and did not promptly replace it
or make restitution.

On June 26, 2026, Defendant
filed the Motion, pursuant to Code of Civil Procedure section 871.26, to obtain
sanctions, because Plaintiff failed to timely serve the mandatory initial
disclosures within 60 days after Defendant's responsive pleading filing.

II.
LEGAL STANDARD

Code of Civil Procedure section 871.26 provides that, unless the party failing to comply with discovery requirements shows good cause, judges shall impose sanctions, including \$1,500.00 against a plaintiff's attorney, or \$2,500.00 against a defendant's attorney, to be paid within 15 business days, for the failure to comply with initial document production. (Code Civ. Proc., § 871.26, subd. (j)).

III.

ANALYSIS

Defendant maintains that monetary sanctions are recoverable based upon Plaintiff's failure to comply with section 871.26, without good cause.

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693 [appellate court will not consider any erroneous rulings where an objection could have been made].)

The Court finds that no Opposition shows good cause for noncompliance with section 871.26.

IV.

CONCLUSION

Accordingly, the Court grants the Motion.